

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Acampora	Team: Team # 6	CCRB Case #: 201305590	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 06/17/2013 9:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/17/2014	Precinct: 83		
Date/Time CV Reported Tue, 06/18/2013 12:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 06/21/2013 10:10 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Campo	08206	947994	083 PCT
2. POM Erick Erdaide	08391	947910	083 PCT
3. An officer			083 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Edward Fackler	02183	948948	083 PCT
2. POM Brian Makinen	05493	906695	083 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Vincent Campo	Abuse: PO Vincent Campo entered § 87(2)(b) in Brooklyn.	A . Exonerated
B . POM Erick Erdaide	Abuse: PO Erick Erdaide entered § 87(2)(b) in Brooklyn.	B . Exonerated
C . POM Vincent Campo	Force: PO Vincent Campo used physical force against § 87(2)(b)	C . Unsubstantiated
D . POM Erick Erdaide	Force: PO Erick Erdaide used physical force against § 87(2)(b)	D . Unsubstantiated
E . An officer	Discourtesy: An officer spoke discourteously to an individual.	E . Alleged Victim Unavailable

Case Summary

On June 18, 2013, Lt. Waheed Akhter, from the 83rd Precinct, filed this complaint with IAB via telephone, on behalf of his prisoner, § 87(2)(b) (encl. 6A-6B). The CCRB received this complaint via IAB log #2013-26446 (encl. 7A-7B) on June 21, 2013.

On June 17, 2013, § 87(2)(b) was at his home at § 87(2)(b) in Brooklyn, when PO Vincent Campo, PO Erick Erdaide, PO Edward Fackler, and PO Brian Makinen of the 83rd Precinct responded to a report of a domestic dispute there. As a result, the following allegations occurred:

- **Allegation A— Abuse of Authority: PO Vincent Campo entered § 87(2)(b) in Brooklyn.**
- **Allegation B— Abuse of Authority: PO Erick Erdaide entered § 87(2)(b) in Brooklyn.**
§ 87(2)(g) Therefore, it is recommended that **Allegations A and B** be closed as ***exonerated***.
- **Allegation C—Force: PO Vincent Campo used physical force against § 87(2)(b).**
- **Allegation D— Force: PO Erick Erdaide used physical force against § 87(2)(b).**
§ 87(2)(g) Therefore, it is recommended that **Allegations C and D** be closed as ***unsubstantiated***.
- **Allegation E—Discourtesy: An officer spoke discourteously to § 87(2)(b).**
§ 87(2)(g) Therefore, it is recommended that **Allegation E** be closed as ***victim unavailable***.

§ 87(2)(b) was arrested during this incident; therefore, this complaint is not eligible for mediation. On August 4, 2014, this case was reassigned from Inv. Amarylis Rivera to Inv. Michael Acampora for closure.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was a § 87(2)(b) Hispanic male, § 87(2)(b), with black hair, a goatee, and black eyes. § 87(2)(b)*

Photos Provided by § 87(2)(b)

§ 87(2)(b) provided a blurry photo (encl. 11H) that he took on June 17, 2013, during the incident, which shows an officer's shield with the number "8391" (PO Erdaide's shield number). § 87(2)(b) also provided photos of his injuries (encl. 11A-11G) that were taken on June 18, 2013, by § 87(2)(b). The photos show slight bruising on his right hip, right arm, and right buttocks.

CCRB Statement

On July 1, 2013, § 87(2)(b) provided a brief phone statement to the CCRB (encl. 9A). On September 27, 2013, § 87(2)(b) was interviewed at the CCRB (encl. 10A-10C). On October 21, 2013, § 87(2)(b) provided a follow-up phone statement (encl. 12A). § 87(2)(g) .

On June 17, 2013, at approximately 1:00 a.m., § 87(2)(b) arrived from work to his grandmother's home, located at § 87(2)(b) in Brooklyn. § 87(2)(b) fell asleep, and at 7:00 a.m., he was awoken by his grandmother, § 87(2)(b) who informed him that she would be leaving to a doctor's appointment. § 87(2)(b) described the apartment as a "railroad" apartment. The rooms are aligned with one another in the following order: living room, dining room, grandmother's bedroom, kitchen, bathroom and his bedroom. His grandmother's bedroom is located at the front of the building. § 87(2)(b) was not under the influence of drugs or alcohol during the incident.

§ 87(2)(b) went back to sleep and at approximately 9:00 a.m. was awoken by the doorbell. § 87(2)(b) exited the apartment, walked 30 feet to the double doors at the lobby area, and opened the lobby door. § 87(2)(b) was wearing a pair of jeans, a black t-shirt, and sandals. § 87(2)(b) was greeted by six uniformed male officers (including PO Vincent Campo, PO Erick Erdaide, PO Brian Makinen, and PO Edward Fackler). One of the officers informed § 87(2)(b) that they had received a call for a domestic disturbance at § 87(2)(b). The officer elaborated that there was someone being assaulted or fighting in his apartment. § 87(2)(b) informed the officers that he was alone in the apartment, and allowed them to enter the apartment building. § 87(2)(b) proceeded to walk back into his apartment and the officers followed. During the walk to § 87(2)(b) the officers requested to enter § 87(2)(b) in order to check what was going on. § 87(2)(b) informed the officers there was no reason to enter, because he was the only individual in the apartment. The officers requested to enter the apartment multiple times and with each request their voices got louder.

§ 87(2)(b) stood inside the entrance of the apartment while the officers stood outside in the hallway. § 87(2)(b) prevented the officers' entry into the apartment and told them that he would not allow them to enter without a warrant. He reiterated to the officers that he was the only person present in the apartment. The apartment door was wide open and the officers had clear view inside of the apartment. The conversation between § 87(2)(b) and the officers was approximately one minute long.

§ 87(2)(b) wanted to take a photograph of the officers' shield numbers, so he reached into his right front pocket in his pants and removed his phone, a black Samsung Galaxy S2 in a clear plastic case. As § 87(2)(b) was taking a photo of PO Erdaide's badge, PO Campo grabbed his right arm, twisted it so that his elbow was out in front of him, and then took him to the ground. § 87(2)(b) was able to obtain a blurred photo of PO Erdaide's badge number (visible in the photo as "8391"). § 87(2)(b) did not do anything other than take out his phone and take a picture. When § 87(2)(b) was taken to the ground, his right elbow, right hip and right buttocks made contact with the floor. § 87(2)(b) then curled into the fetal position.

PO Campo and PO Erdaide started punching and kicking § 87(2)(b). § 87(2)(b) remained in the fetal position, protecting his face. § 87(2)(b) did not attempt to grab, strike, or move from the officers. PO Campo and PO Erdaide kicked § 87(2)(b) on his back, right hip and buttocks area. § 87(2)(b) could not estimate the number of times he was kicked, but

stated that he was kicked for approximately one to two minutes. § 87(2)(b) stated that he was punched six times, on his back and possibly on the back left side of his head. The officers did not say anything while they struck § 87(2)(b). § 87(2)(b) did not specifically remember the officers punching him on his head, but recalled that that was the area that had the most pain. As the officers struck § 87(2)(b) in § 87(2)(b) a neighbor named “§ 87(2)(b)” exited his apartment to observe what was occurring. An officer then told “§ 87(2)(b)” to mind his “fucking” business and return into his apartment. § 87(2)(b) did not know “§ 87(2)(b)” last name, but stated that he lived in § 87(2)(b).

The officers pulled back § 87(2)(b)’s arms and PO Campo handcuffed him. The officers picked § 87(2)(b) up off the ground and removed him from the apartment building. § 87(2)(b) was brought outside (approximately 20 feet from the apartment building) and was able to see into the windows to § 87(2)(b). All six officers reentered the apartment building, and § 87(2)(b) observed one officer looking outside of the window from § 87(2)(b). The only thing he observed was the officer looking outside from the window in § 87(2)(b). § 87(2)(b) was placed at the back seat of the patrol car. All of the officers returned to the apartment, and left § 87(2)(b) alone. § 87(2)(b) observed one of the officers looking out of the window from his grandmother’s bedroom. The officers then came back outside and transported § 87(2)(b) to the 83rd Precinct.

In the patrol car and at the 83rd Precinct stationhouse, § 87(2)(b) complained of pain in his rib area. The officers called EMS and § 87(2)(b) was transported to § 87(2)(b) in an ambulance with paramedics and an unidentified black male officer who had not been on scene. When they arrived at the hospital, the officer returned back to the precinct.

§ 87(2)(a) PHL § 18(6)
§ 87(2)(b) was discharged eight hours later and returned to the 83rd Precinct. § 87(2)(b)’s arrest was processed and he was charged with § 87(2)(b).

Upon release, § 87(2)(b) returned back to the hospital § 87(2)(b). He also took photographs of his injuries. § 87(2)(b) stated that as a result of the incident, he sustained bruises on the left side of his ribs, the back left side of his head, his entire back, his right bicep, right hip, and right buttocks. § 87(2)(b) was not aware of any officers sustaining any injuries at any point of the incident.

Witness: § 87(2)(b)

CCRB Statement

On June 27, 2013, § 87(2)(b) (§ 87(2)(b)’s grandmother) provided a brief phone statement, which is summarized below (encl. 8A).

On the date of incident, prior to 7:30 a.m., § 87(2)(b) observed that § 87(2)(b) was outside. § 87(2)(b) was in a bad mood, and § 87(2)(b) assumed he had an argument with the mother of his children. § 87(2)(b) reprimanded § 87(2)(b) and told him to go into the apartment. § 87(2)(b) did not indicate if they were arguing or yelling at each other.

§ 87(2)(b) informed § 87(2)(b) that she had a doctor’s appointment in § 87(2)(b) and left at 7:30 a.m. § 87(2)(b) was the only individual in the apartment.

When § 87(2)(b) returned from the hospital at 2:00 p.m., her neighbors informed her that the police were at her address and what had occurred. § 87(2)(b) neighbors informed her that the officers wanted to enter her apartment and that § 87(2)(b) had informed them that they would need a warrant to do so. The officers then hit § 87(2)(b) and arrested him. The individual that lives across from § 87(2)(b) apartment observed when the officers grabbed § 87(2)(b) § 87(2)(b) was asked for the neighbor's information, but she refused to provide it at the time of the interview.

The next time § 87(2)(b) saw § 87(2)(b) was when he was in court a few days after the arrest. When § 87(2)(b) saw § 87(2)(b) she observed that he had injuries on his back.

Attempts to Contact “§ 87(2)(b)”

§ 87(2)(b) stated that a neighbor named § 87(2)(b) was present for a portion of the incident, and that an officer spoke discourteously to him. § 87(2)(b) said that § 87(2)(b) lived in § 87(2)(b) of his building. On October 25, 2013, and February 24, 2014, letters were sent to § 87(2)(b) at that address. As of September 30, 2014, those letters have not been returned by the USPS. A LexisNexis search for “§ 87(2)(b)” at the aforementioned address did not yield any additional contact information.

NYPD Statements

Subject Officer: PO ERICK ERDAIDE

- § 87(2)(b) *old on the date of the incident, PO Erdaide is a Hispanic male who is § 87(2)(b) with black hair, and hazel eyes.*
- *On the date of the incident, PO Erdaide worked sector AB patrol with PO Vincent Campo from 7:05 a.m. to 3:40 p.m. The officers were uniformed, and assigned to a marked patrol car (#3178).*

Memo Book: PO Erdaide’s memo book (encl. 22A-22C) notes that at 8:45 a.m., he backed up sector E at § 87(2)(b) for an assault in progress. At 9:00 a.m., he backed up sector E at § 87(2)(b) for an assault in progress. At 9:35 a.m., PO Erdaide made an arrest for § 87(2)(b)

Complaint Report & Arrest Report for § 87(2)(b)

§ 87(2)(a) 160.50
[REDACTED]

§ 87(2)(a) 160.50 The arrest report notes that § 87(2)(b) s physical condition was intoxicated (alcohol) and that force was used during the arrest.

CCRB Statement

On June 4, 2014, PO Erick Erdaide was interviewed at the CCRB (encl. 26A-26C). His statement is summarized below.

On June 17, 2013, at approximately 8:45 a.m., PO Erdaide was working in sector AB with PO Campo. The officers received a call for an assault in progress at § 87(2)(b) in Brooklyn with a description of the perpetrator. The description was of a Hispanic male with a black hat and facial hair. PO Erdaide stated that he had a more detailed description at the time of the incident, but could not remember it. PO Erdaide and PO Campo responded to the location in the call, canvassed the area, and then called back that it was negative.

At 9:00 a.m., the assault in progress job came over the radio again, with an updated location (§ 87(2)(b)). PO Erdaide was not sure why the location changed. PO Erdaide and PO Campo responded to the updated location and saw a man who fit the description perfectly (§ 87(2)(b)) peeking his head out the window of the building. PO Erdaide did not remember if they addressed § 87(2)(b) at this point, or if § 87(2)(b) said anything to them.

The officers got out of their vehicle and approached the apartment building. Someone (PO Erdaide was not sure who) let them into the apartment building. PO Erdaide did not remember if it was § 87(2)(b) who opened the door to the apartment building. The officers went to § 87(2)(b) s apartment and knocked on his door. The officers said that they needed to check inside to see if the complainant (who had called about the assault in progress) was inside. § 87(2)(b) opened the door to his apartment and stepped aside to let the officers enter the apartment.

The officers started walking towards a back room of § 87(2)(b) s apartment and his demeanor immediately changed. § 87(2)(b) began panicking and told the officers that they could not be in his apartment, that they needed a warrant, and that they needed to get out of his apartment. § 87(2)(b) yelled at the officers, and the officers told § 87(2)(b) that they needed to check the apartment to make sure that nobody was hurt, since they had received two calls about an assault. PO Erdaide stated that § 87(2)(b) smelled of alcohol throughout the incident. PO Erdaide did not notice any signs of § 87(2)(b) being intoxicated other than the smell and his behavior.

PO Erdaide and PO Campo's search of the apartment consisted of them briefly walking into each room. PO Erdaide stated that the officers were looking for a person, so they did not go through any drawers. § 87(2)(b) s demeanor change as the officers approached the back room of the apartment raised their suspicion about what was in the room. However, the officers completed the search of the apartment and did not find the complainant. § 87(2)(b) was the only individual in the apartment at the time of the search. PO Erdaide was not sure if the officers spoke to § 87(2)(b) while they were doing the sweep of the apartment. The entire search took approximately a minute.

The officers finished their search and came outside to see § 87(2)(b) filming them with his cell phone. § 87(2)(b) asked PO Erdaide for his shield number, and he provided it to him verbally several times. § 87(2)(b) stepped in the officers' way to prevent them from leaving and put his cell phone out in front of them. PO Erdaide moved § 87(2)(b) out of the officers'

way by putting his hands on him and guiding him out of the path of the doorway. The officers started walking away from § 87(2)(b) when he grabbed PO Campo's shoulder from behind and yanked him backwards.

The officers decided that they were going to arrest § 87(2)(b). The officers gave § 87(2)(b) several commands to put his hands behind his back, but he was non-compliant. The officers struggled to handcuff § 87(2)(b) because he flailed his arms. At some point, the officers took § 87(2)(b) to the ground, but PO Erdaide was not sure how exactly they did so. PO Erdaide stated that he punched § 87(2)(b) in the back of his shoulder blade in order to get his arms behind his back. PO Erdaide was not sure how many times he punched § 87(2)(b). PO Erdaide did not kick § 87(2)(b) at any point. PO Erdaide was not sure if PO Campo punched or kicked § 87(2)(b). After the minute-long struggle, the officers successfully handcuffed § 87(2)(b). PO Erdaide and PO Campo each took one of § 87(2)(b)'s arms and picked him up off the ground. The officers brought § 87(2)(b) to their RMP, waited for their supervisor to come to the scene to verify the arrest, and then went to their stationhouse. § 87(2)(b) did not say anything during the struggle and handcuffing. The officers did not use any weapons or additional force against § 87(2)(b).

PO Erdaide stated that officers from Sector E were in the vicinity of the incident, but he did not remember where exactly they were during the incident, or what they did. PO Erdaide did not remember if the officers from Sector E went into the apartment building. PO Erdaide did not remember he and/or PO Campo going back into § 87(2)(b)'s apartment a second time. PO Erdaide stated that no other civilians interfered with them during the incident, and he was not sure if any neighbors observed it.

At the stationhouse, the officers processed § 87(2)(b)'s arrest. PO Erdaide did not remember § 87(2)(b) requesting any medical attention. PO Erdaide did not remember § 87(2)(b) having any visible injuries, and did not recall him complaining of any injuries. The investigator showed § 87(2)(b)'s arrest report to PO Erdaide and he stated that he remembered § 87(2)(b) mentioning something about a heart condition at the stationhouse, and that he had lifted up his shirt to show a scar in the center of his chest. PO Erdaide did not recall § 87(2)(b) asking for an ambulance, but stated that if there was paperwork confirming that an ambulance was called, then one was called.

PO Erdaide did not recall telling any individual to, "Mind [his] fucking business," and did not recall his partner doing so. PO Erdaide did not recall either officer using any additional profanity.

At some point, § 87(2)(b) head-butted PO Campo, causing him to sustain a laceration. PO Erdaide was doing paperwork at the time and did not observe this happen.

Subject Officer: PO VINCENT CAMPO

- § 87(2)(b) old on the date of the incident, PO Campo is a white male who is § 87(2)(b) with brown hair and brown eyes.
- On the date of the incident, PO Campo worked sector AB patrol with PO Erick Erdaide from 7:05 a.m. to 3:40 p.m. The officers were uniformed, and assigned to a marked patrol car (#3178).

Memo Book: PO Campo's memo book (encl. 17A-17D) notes that at 8:43 a.m., he backed up sector E for an assault in progress at § 87(2)(b). At 8:50 a.m., PO Campo marked the job

unfounded. At 9:00 a.m., he went to § 87(2)(b) for an assault in progress. At 9:31 a.m., PO Campo had one under from § 87(2)(b). At 10:30 a.m., the prisoner § 87(2)(b) requested medical attention. At 10:42 a.m., as per Lt. Akhter's instructions, § 87(2)(b)'s watch was to be removed and vouchered. Upon removing the watch from § 87(2)(b), he spit on PO Campo's face and in his eyes. While PO Campo restrained § 87(2)(b) so that he did not spit on him again, § 87(2)(b) head-butted PO Campo's lip, causing a laceration to his bottom lip and causing an injury to his right hand. At 12:06 p.m., PO Campo went to § 87(2)(b) in regards to his injury and the spit in his eyes and face. On the fly page, PO Campo noted the description for the perpetrator at § 87(2)(b) a Hispanic male with a black or blue hat, a black or blue shirt, and black or blue sneakers.

LOD Report

PO Campo's narrative of his LOD report (encl. 19A) states that the officer was trying to remove § 87(2)(b)'s watch in order to voucher it when § 87(2)(b) said, "Fuck you, I am not giving you my watch until I get a voucher." PO Campo told § 87(2)(b) that he would receive a voucher when he returned from the hospital. § 87(2)(b) told PO Campo, "Fuck you," again and told him he was not giving him his watch. § 87(2)(b) spit on PO Campo's face and head-butted him in the mouth, § 87(2)(b).

§ 87(2)(b) The report recommends that PO Campo be placed on LOD designation.

AIDED Report

The AIDED Report for PO Campo (encl. 18A-18E) states that § 87(2)(b) PO Campo also § 87(2)(b) also spit in PO Campo's mouth and eyes. PO Campo was taken to § 87(2)(b) for treatment.

CCRB Statement

On June 3, 2014, PO Vincent Campo was interviewed at the CCRB (encl. 20A-20C). His statement is summarized below.

On June 17, 2013, at approximately 8:43 a.m., PO Campo and PO Erdaide were on patrol in sector AB when they received a call for an assault in progress at § 87(2)(b) in Brooklyn. PO Campo stated that he believed the call was about a male hurting a female and that the female had been crying in the background of the call.

The officers responded to the location, which was outside of § 87(2)(b) but did not see the assault and marked it unfounded. They then received a second call about the assault in progress, which said that it was occurring in § 87(2)(b) of § 87(2)(b). The officers were also provided with the description of the male perpetrator listed on PO Campo's fly page. PO Campo and PO Erdaide arrived at the location a second time, and saw a male who matched their description leaning out of a window that was approximately a foot off the ground. The officers spoke to the male § 87(2)(b) but he did not say much to them. PO Campo did not remember what exactly § 87(2)(b) said.

The officers approached the front door to the apartment building, and § 87(2)(b) opened the door and let the officers inside. § 87(2)(b) then turned around and walked back into his apartment § 87(2)(b) and shut the door. The officers saw that he had entered the apartment they were called about, and approached the door to his apartment. The officers knocked on the door of

§ 87(2)(b)'s apartment, and he opened it. § 87(2)(b) appeared to be intoxicated (he smelled of alcohol and was slurring his speech) and was angry and cursing. The officers asked if anyone else was in the apartment and § 87(2)(b) said no. § 87(2)(b) loudly and repeatedly asked the officers why they were at his apartment. § 87(2)(b) initially would not allow the officers to explain themselves, but they then managed to ask if he minded if they checked the apartment for an injured female, per their call. The officers walked around the apartment in a circle checking any areas where a person could be, and then attempted to leave.

PO Campo stated that § 87(2)(b) did not block or prevent the officers from entering his apartment, but he did seem unhappy about it. § 87(2)(b) did not give any clear verbal or physical signs for the officers to enter his apartment. § 87(2)(b) did not really start yelling at the officers until they walked around his apartment. The officers explained the exigent circumstances for why they were in § 87(2)(b)'s apartment to him as they walked around. PO Campo stated that § 87(2)(b) grew angrier as they did their sweep of the apartment, and this change in his demeanor heightened their suspicion. The entire survey of the apartment took approximately five to seven minutes.

As the officers tried to exit § 87(2)(b)'s apartment, he got in their way and told them that they needed a warrant and needed to leave. § 87(2)(b) also asked the officers for their name and shield numbers multiple times. PO Campo then physically guided § 87(2)(b) out of the officers' way and they exited his apartment and closed his door. PO Campo did not recall § 87(2)(b) taking out his cell phone. The officers did not slam § 87(2)(b) into a wall.

The officers started walking down the corridor out of the apartment building when PO Campo heard § 87(2)(b)'s apartment door quickly reopen. § 87(2)(b) then grabbed PO Campo's shoulder (he was not sure which) from behind, and yanked him backwards. PO Campo turned around and saw that § 87(2)(b) had his hand raised in the air. He was not sure if § 87(2)(b)'s hand was closed or open. PO Campo was not sure what § 87(2)(b) was going to do with his hand.

PO Campo grappled § 87(2)(b) in an arm bar (by holding § 87(2)(b)'s arms and torso in his embrace) and took him to the ground on his side. On the ground, § 87(2)(b) tried to pull away and kick to get away from the officers. The officers managed to turn § 87(2)(b) onto his stomach and handcuffed him. PO Campo was not sure which officer handcuffed him.

PO Campo stated that it was possible that he and/or PO Erdaide punched § 87(2)(b) when they were attempting to restrain him, but that he did not specifically remember if this happened. PO Campo said that, if they had punched § 87(2)(b) in order to restrain him, it would have been on his arms and/or legs. Neither PO Campo nor PO Erdaide kicked § 87(2)(b) and neither officer used any asps, batons, or other weapons against him.

PO Campo did not see a female civilian on scene at any point. PO Campo did not remember any other apartments being on the first floor of the building, and did not see any neighbors or other officers in the apartment building hallway. PO Campo stated that sector E (who they were originally backing) also responded to the scene, but he was not sure which officers they were. He was also not sure which officers covered the incident location. PO Campo and PO Erdaide did not tell any bystanders to, "mind [their] fucking business." PO Campo did not think either officer used any profanity during the incident. The officers were on scene for approximately 30 minutes.

The officers brought § 87(2)(b) to their RMP and then transported him to the stationhouse. PO Campo was not sure if either officer went back into § 87(2)(b)'s apartment a second time after bringing him outside. At the stationhouse, § 87(2)(b) requested medical attention. PO Campo was not sure why he wanted medical attention, but believed it may have been for a pacemaker or colostomy bag. PO Campo stated that § 87(2)(b) did not have any visible injuries.

EMS arrived at the stationhouse for § 87(2)(b). PO Campo's supervisor told him to voucher § 87(2)(b)'s watch because he was intoxicated. PO Campo relayed this to § 87(2)(b) and § 87(2)(b) told him, "Fuck you, you're not getting my watch." PO Campo placed § 87(2)(b) in the ambulance and took off his handcuffs. § 87(2)(b) then spit in PO Campo's face. PO Campo tried to hold § 87(2)(b)'s head away from him to prevent him from spitting again, and § 87(2)(b) head-butted PO Campo and attempted to bite him. § 87(2)(b)

PO Campo handcuffed § 87(2)(b) again and got out of the ambulance. Another officer then escorted § 87(2)(b) to the hospital, and PO Campo went to the hospital for his own injuries. § 87(2)(b)

§ 87(2)(b) PO Campo believed that PO Erdaide was in the stationhouse processing § 87(2)(b)'s arrest during the incident in the ambulance.

The investigator showed PO Campo the SPRINT report for the incident to see if it helped him remember additional details of the incident. PO Campo stated that the SPRINT report matched the details of the incident he had recorded in his memo book.

Witness Officer: PO EDWARD FACKLER

- § 87(2)(b) old on the date of the incident, PO Fackler is a black male who is § 87(2)(b) with black hair and brown eyes.
- On the date of the incident, PO Fackler was assigned to sector patrol with PO Brian Makinen from 7:05 a.m. to 3:40 p.m. The officers were uniformed and assigned to a marked vehicle.

Memo Book: PO Fackler's memo book (encl. 15A-15D) notes that at 9:00 a.m., he responded to an assault in progress at § 87(2)(b). At 9:35 a.m., a person was arrested by sector AB for § 87(2)(a) 160.50. The defendant opened their door in regards to the police presence and the police heard a scream. The officers searched the residence, but the callback was negative and there was no complainant/victim. The defendant was visibly irate, and was given PO Fackler's shield number. The defendant refused to let the officers leave, and forcefully grabbed an officer.

CCRB Statement

On July 23, 2014, PO Edward Fackler was interviewed at the CCRB (encl. 16A-16B). His interview is summarized below.

On June 17, 2013, at approximately 9:00 a.m., PO Fackler and PO Makinen responded to a call for an assault in progress at the incident location. When the officers arrived, they spoke to the officers from sector AB who were already on scene. The officers from that sector said that they

were going to handle the job, and PO Fackler and PO Makinen walked to the sidewalk directly in front of the building to wait.

A few minutes later, PO Fackler heard a commotion (that he described as a loud voice, he could not describe what it was saying) coming from the front door of the building. One of the officers from sector AB opened the front door of the building and had a man § 87(2)(b) in handcuffs. PO Fackler then escorted § 87(2)(b) from the front door of the building to his vehicle, and then transported him back to the stationhouse. PO Fackler stated that he provided his shield number to § 87(2)(b) as he was walking him to the police vehicle. PO Fackler did not recall any civilians interfering with the police during the escort of § 87(2)(b) to the police vehicle. PO Fackler did not observe any interactions involving § 87(2)(b) before escorting him to the police vehicle. PO Fackler believed that he went back out on patrol again after dropping off § 87(2)(b) at the stationhouse.

PO Fackler did not know if the officers from sector AB searched the incident location. PO Fackler and PO Makinen did not enter the incident location at any point, and did not search it. PO Fackler did not hear any of the officers on scene tell any civilians to, “mind [their] fucking business,” or use any other profanities. PO Fackler did not observe any injuries on § 87(2)(b) and did not hear him complain of any chest or rib pain.

PO Fackler stated that he did not observe § 87(2)(b) refusing to let officers leave and grabbing an officer as noted in his memo book, but that an officer (he did not remember who) informed him of this after the fact. PO Fackler did not recall seeing the victim of the reported assault in progress at any point. The investigator showed PO Fackler the arrest photo of § 87(2)(b) and he stated that he did not recognize him.

Witness Officer: PO BRIAN MAKINEN

- § 87(2)(b) *old on the date of the incident, PO Makinen is a white male who is § 87(2)(b), with blonde hair and blue eyes.*
- *On the date of the incident, PO Makinen was assigned to sector patrol with PO Edward Fackler from 7:05 a.m. to 3:40 p.m. The officers were uniformed and assigned to a marked patrol car.*

Memo Book: PO Makinen’s memo book (encl. 13A-13C) notes that at 8:42 a.m., he responded to an assault in progress at § 87(2)(b). At 8:50 a.m., he marked that job unfounded. At 8:58 a.m., he responded to an assault in progress at § 87(2)(b) (the incident location). At 9:32 a.m., he transported an arrested male back to the stationhouse for sector A.

CCRB Statement

On July 23, 2014, PO Brian Makinen was interviewed at the CCRB (encl. 14A-14B). His statement is summarized below.

PO Makinen did not recall the incident in question. The investigator gave PO Makinen the background information about the two 911 calls about assaults in progress. PO Makinen checked his memo book and saw he had an earlier entry about an assault (the 8:42 a.m. entry) and that it was unfounded. PO Makinen stated that he did not recall either event, and that he responds to many assault calls. The investigator then gave PO Makinen the full background information about the incident, but it did not refresh his memory of it. The investigator also showed PO Makinen the SPRINT report for the incident, but he stated that it did not help refresh his memory of the

incident. The investigator showed PO Makinen the arrest photo of § 87(2)(b) and he stated that he did not recognize him at all. The investigator mentioned that PO Erdaide and PO Campo were involved with the incident, and PO Makinen said he was new to the command at the time of the incident and that he did not know the names of any officers.

Medical Records

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(a) PHL § 18(6)

NYPD Documents

Arrest Photo

§ 87(2)(b)'s arrest photo (encl. 28A) does not show any visible injuries to his face.

SPRINT Report

The SPRINT report for the incident (encl. 31A-31F) notes that at 8:38 a.m., and anonymous female caller reported that a man was, “beating on,” a woman at § 87(2)(b). The caller described the man as a Hispanic (“Dominican”) male with facial hair, a black t-shirt, black hat, dark blue shorts, and black sneakers. Between 8:40 a.m. and 8:52 a.m., a radio miscommunication accidentally sent the officers to § 87(2)(b). At 8:53 a.m., the anonymous female caller called again and reported that the male and female were arguing in the apartment. At 9:00 a.m., 83E arrived on scene, and at 9:12 a.m. they requested backup. At 9:25 a.m., 83A arrived on scene, and at 9:28 a.m., LT1 arrived on scene.

Medical Treatment of Prisoner Form

The Medical Treatment of Prisoner Form for § 87(2)(b) (encl. 34A) notes that § 87(2)(b) stated he § 87(2)(b) wanted to go to the hospital. PO Campo is listed as the escort officer. The injury is listed as being an old/prior injury.

Property Voucher

§ 87(2)(b) s Property Voucher (encl. 33A-33B) was prepared by PO Erdaide and notes that a watch and two yellow metal earrings were vouchered.

Command Log

The Command Log entry (encl. 35A) for § 87(2)(b) s arrest notes that his physical/mental condition was, “Good,” and that he left the stationhouse to go to § 87(2)(b).

Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of September 12, 2014, with regard to the incident (encl. 40A).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]
- [REDACTED]

Civilian’s CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 4A).

Subject Officers’ CCRB History

- PO Campo has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 2A).
- PO Erdaide has been a member of the service for five years and there are three substantiated CCRB allegations against him (encl. 3A):
 - In CCRB case number 201005897, allegations of a stop, frisk, and search were substantiated against PO Erdaide. The CCRB recommended a command discipline, the NYPD recommended instructions, and instructions were imposed.

Conclusion

Identification of Subject Officers

PO Campo and PO Erdaide acknowledged entering § 87(2)(b) s apartment and physically interacting with him. § 87(2)(g)

[REDACTED]

Investigative Findings and Recommendations

Allegation A—Abuse of Authority: PO Vincent Campo entered § 87(2)(b) in Brooklyn.

Allegation B—Abuse of Authority: PO Erick Erdaide entered § 87(2)(b) in Brooklyn.

It is undisputed that PO Campo and PO Erdaide received a radio call, which stated that a man was, “beating on,” a woman inside his apartment, and that an argument was in progress. The radio description of the perpetrator was a Hispanic male with facial hair, a black t-shirt, black hat, dark blue shorts, and black sneakers. § 87(2)(b) is a Hispanic male who had facial hair and was wearing a black t-shirt at the time of the incident. The officers immediately responded, and entered § 87(2)(b)'s apartment in regards to the conflict within minutes of receiving the radio transmission.

Police officers are authorized to enter § 87(2)(b)'s home in accordance with the “emergency doctrine.” In order for entry to qualify under the doctrine, the following three requirements must be met: 1) the police must have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property, 2) the search/entry must not be primarily motivated by the intent to arrest, and 3) there must be some reasonable basis approximating probable cause, to associate the emergency with the area being searched. People v. Mitchell, 39 NY2d 173, 383 NYS2d 246 (1976) (encl. 1A-1F).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as ***exonerated***.

Allegation C—Force: PO Vincent Campo used physical force against § 87(2)(b)

Allegation D— Force: PO Erick Erdaide used physical force against § 87(2)(b)

§ 87(2)(b) stated that, as he was trying to take a picture of the officers’ shield numbers, PO Campo grabbed his right arm, twisted it so that his elbow was out in front of him, and then took him to the ground. When § 87(2)(b) landed on the ground, his right elbow, right hip and right buttocks made contact with the floor. § 87(2)(b) then curled into the fetal position. PO Campo and PO Erdaide started punching and kicking § 87(2)(b). PO Campo and PO Erdaide kicked § 87(2)(b) on his back, right hip, and buttocks area. § 87(2)(b) could not estimate the number of times he was kicked, but stated that he was kicked for approximately one to two minutes. § 87(2)(b) stated that he was also punched six times on his back and possibly on the

back left side of his head. § 87(2)(b) did not specifically remember the officers punching him on his head, but recalled that that was the area that had the most pain.

PO Erdaide stated that the officers were walking away from § 87(2)(b) when he grabbed PO Campo's shoulder from behind and yanked him backwards. The officers then decided that they were going to arrest § 87(2)(b). The officers gave § 87(2)(b) several commands to put his hands behind his back, but he was non-compliant. The officers struggled to handcuff § 87(2)(b) because he flailed his arms. At some point, the officers took § 87(2)(b) to the ground, but PO Erdaide was not sure how exactly they did so. PO Erdaide stated that he punched § 87(2)(b) in the back of his shoulder blade in order to get his arms behind his back. PO Erdaide was not sure how many times he punched § 87(2)(b). PO Erdaide did not kick § 87(2)(b) at any point. PO Erdaide was not sure if PO Campo punched or kicked § 87(2)(b). After the minute-long struggle, the officers successfully handcuffed § 87(2)(b).

PO Campo stated that § 87(2)(b) grabbed his shoulder (he was not sure which) from behind, and yanked him backwards. PO Campo turned around and saw that § 87(2)(b) had his hand raised in the air. PO Campo grappled § 87(2)(b) in an arm bar (by holding § 87(2)(b)'s arms and torso in his embrace) and took him to the ground on his side. On the ground, § 87(2)(b) tried to pull away and kick to get away from the officers. The officers managed to turn § 87(2)(b) onto his stomach and handcuffed him. PO Campo was not sure which officer handcuffed him. PO Campo stated that it was possible that he and/or PO Erdaide punched § 87(2)(b) when they were attempting to restrain him, but that he did not specifically remember if this happened. PO Campo said that, if they had punched § 87(2)(b) in order to restrain him, it would have been on his arms and/or legs. Neither PO Campo nor PO Erdaide kicked § 87(2)(b).

Neither PO Makinen nor PO Fackler witnessed this part of the incident.

§ 87(2)(g)
Therefore, it is recommended that **Allegations C and D** be closed as *unsubstantiated*.

Allegation E—Discourtesy: An officer spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that while the incident was going on, a neighbor named § 87(2)(b) exited his own apartment to observe what was occurring. An officer § 87(2)(b) could not describe them further) then told § 87(2)(b) to mind his “fucking” business and return into his apartment.

§ 87(2)(b) did not know § 87(2)(b)'s last name, but stated that he lived in § 87(2)(b). On October 25, 2013, and February 24, 2014, letters were sent to § 87(2)(b) at that address. As of September 30, 2014, those letters have not been returned by the USPS. A LexisNexis search for § 87(2)(b) did not yield any additional contact information.

§ 87(2)(g)
Therefore, it is recommended that **Allegation E** be closed as *victim unavailable*.

Team: _____

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date